Court File No.:

Ontario
SUPERIOR COURT OF JUSTICE

BETWEEN:

YANJUN LIU

Plaintiff

and

RAPHAEL SANTOS ANGOLUAN

Defendant

STATEMENT OF CLAIM

TO THE DEFENDANT:

A LEGAL PROCEEDING HAS BEEN COMMENCED AGAINST YOU by the Plaintiff. The claim made against you is set out in the following pages.

IF YOU WISH TO DEFEND THIS PROCEEDING, you or an Ontario lawyer acting for you must prepare a Statement of Defence in Form 18A prescribed by the Rules of Civil Procedure, serve it on the Plaintiff's lawyer, or, where the Plaintiff does not have a lawyer, serve it on the Plaintiff, and file it, with proof of service, in this court office, WITHIN TWENTY DAYS after this Statement of Claim is served on you, if you are served in Ontario.

If you are served in another Province or Territory of Canada, or the United States of America, the period for serving and filing your Statement of Defence is forty days. If you are served outside Canada or the United States of America, the period for serving and filing your Statement of Defence is sixty days.

Instead of serving and filing a Statement of Defence, you may file a Notice of Intent to Defend in form 18B prescribed by the Rules of Civil Procedure. This will entitle you to ten more days in which to serve and file your Statement of Defence.

IF YOU FAIL TO DEFEND THIS PROCEEDING, JUDGMENT MAY BE GIVEN AGAINST YOU IN YOUR ABSENCE AND WITHOUT FURTHER NOTICE TO YOU. IF YOU WISH TO DEFEND THIS PROCEEDING BUT ARE UNABLE TO

PAY LEGAL FEES, LEGAL AID MAY BE AVAILABLE TO YOU BY CONTACTING A LOCAL LEGAL AID OFFICE.

TAKE NOTE: THIS ACTION WILL AUTOMATICALLY BE DISMISSED if it has not been set down for trial or terminated by any means within five years after the action was commenced unless otherwise ordered by the court.

Date: _____

Issued by:_____
Local Registrar
Newmarket Courthouse
50 Eagle Street West
Newmarket, Ontario
L3Y 6B1

TO: Raphael Santos Angoluan
47 Stricker Avenue
Markham, Ontario
L6E 1N6

CLAIM

1. The Plaintiff, YanJun Liu claims against the Defendant:

   (a) general damages in the sum of $500,000.00;

   (b) special damages in the sum of $500,000.00

   (c) pre-judgment and post-judgment interest in accordance with the provisions of the *Courts of Justice Act*, R.S.O. 1990 c. C-43, as amended;

   (d) her costs of this action on a substantial indemnity basis, together with Harmonized Sales Tax; and

   (e) such further and other relief as this Honourable Court deems just.

2. The Plaintiff resides in the City of Markham, in the Province of Ontario, and was at all material times the passenger of the grey 2010 Honda motor vehicle bearing Ontario license plate number CTFX167 (“the Honda”).

3. The Defendant, Raphael Santos Angoluan, resides in the City of Markham, in the Province of Ontario, and was at all material times the operator of the red 2014 Toyota motor vehicle bearing Ontario license plate number BVFT084 (“the Toyota”).

4. On or about September 27, 2025, the Honda was stopped at the intersection of Major Mackenzie Drive East and Warden Avenue, in the Municipality of Markham, in the Province of Ontario, when the Toyota rear ended the Honda, thereby causing a collision (“the accident”).

5. As a result of the accident, the Plaintiff sustained permanent serious disfigurements and permanent serious impairments of important physical, mental and psychological functions as hereinafter described.

6. The Plaintiff states that the negligence of the Defendant, caused the accident, injuries, damages and losses arising therefrom, particulars of which are as follows:

As to Raphael Santos Angoluan:

(a) he rearended the Honda;

(b) he failed to keep a proper lookout;

(c) he made an unsafe move;

(d) he was driving carelessly;

(e) he failed to keep the Toyota under proper control;

(f) he was travelling at an excessive speed in the circumstances;

(g) he failed to observe the rules of the road as required by the *Highway Traffic Act,* R.S.O. 1990, chapter H-8, as amended;

(h) he was operating the Toyota when he knew or ought to have known that its brakes were not in proper working order;

(i) he failed to properly inspect the Toyota and/or its contents before operating the Toyota;

(j) he created a situation of danger and emergency;

(k) he was an incompetent driver lacking in reasonable care, skill, diligence, ability, training, and he ought not to have been operating the Toyota in the circumstances or at all;

(l) he was operating the Toyota when his ability to do so was impaired by alcohol, prescription medication, over-the-counter medication, herbal remedies, illicit drugs, fatigue, stress, his medical, psychiatric, psychological or emotional condition, or a combination thereof;

(m) he had the last clear chance to avoid the accident and failed to avail himself of that chance;

(n) he was using a cellular telephone while operating the Toyota or was otherwise distracted;

(o) he failed to keep the Toyota in a fit and proper condition suitable for its safe operation.

7. As a direct result of the accident, the Plaintiff sustained injuries to her head, neck, chest, throat, left elbow, left hand, arms, wrists, fingers, low back, mid back, upper extremities, shoulders, scapula, lower extremities, left feet, sacrum, pelvis, hips, ankles, spine, cervical spine, lumbar spine, muscles, together with a severe concussion, and has developed chronic pain.

8. As a further result of the accident, the Plaintiff's injuries have been accompanied by, but not limited to, severe pain, soreness, sleep disturbance, insomnia, intense headaches, numbness, tinnitus, disk herniation, dizziness, sweating, memory issues, nausea, fatigue, irritability, nervousness, anxiety, post-traumatic stress disorder, personality changes, flashbacks, loss of appetite, nightmares, depression and mental anguish, for

which she has required various medical treatments comprised of physical and psychological therapies.

9. As a further result of the negligence of the Defendant, the Plaintiff has undergone and will continue to undergo in the future: hospitalization, therapy, rehabilitation, and other forms of medical treatment and health care.

10. As a further result of the injuries sustained, the Plaintiff's ability to work in the future has also been impaired. Moreover, the Plaintiff has incurred and continues to incur expenses for medical and other treatments and therapies, medications and other consequential special damages.

11. The Plaintiff has sustained a loss of income and will continue to sustain a loss of competitive advantage in the employment field, loss of income earning potential and a diminution of income earning capacity.

12. Full particulars of the Plaintiff's special damages are not available at the time of filing this Statement of Claim but will be provided prior to trial.

13. The Plaintiff pleads and relies upon the provisions of the *Negligence Act*, R.S.O. 1990, c. N-1; the *Insurance Act*, R.S.O 1990, c. I-8; the *Highway Traffic Act*, R.S.O. 1990, c. H-8, and the *Courts of Justice Act*, R.S.O. 1990 c. C-43, all as amended.

The Plaintiff proposes that this action be tried at the City of Newmarket.

Dated:

Pace Law Firm
191 The West Mall
Suite 1100
Toronto, Ontario
M9C 5K8

Nancy Young
LSUC#55329M
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Solicitors for the Plaintiff

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Newmarket Superior Court of Justice / Cour supérieure de justice

LIG
Plaintiff

and

ANGOLUAN
Defendant

Court File No.:

Ontario
SUPERIOR COURT OF JUSTICE

Proceeding commenced at

NEWMARKET

STATEMENT OF CLAIM

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